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EXTRAORDINARY

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PART IV (A) — PROVINCIAL COUNCILS

Provincial Councils Notifications

NORTHERN PROVINCE PROVINCIAL COUNCIL

Appropriation Statute No. 04 of 2014

A Statute to provide for the service of the Financial Year 2015, to authorize to make financial provision in respect of certain activities of the Provincial Council of the Northern Province during the Financial Year, to enable the payment, by way of advances out of the Provincial Fund or any other fund or monies, of or at the disposal of the Provincial Council of the Northern Province, of monies required during the financial year for expenditure on such activities, to provide for the refund of such monies to the Provincial Fund and to make provision for matters connected with or incidental thereto.

Be it enacted by the Provincial Council of the Northern Province as follows :-

1. This statute may be cited as the “Appropriation Statute No. 04 of 2014.”

Short Title

2. (1) Without prejudice to any other law authorizing any expenditure of the Provincial Council of the Northern Province which it is estimated to be Rupees Seventeen Thousand Eight Hundred and Fifty Eight Million Six Hundred and Ninety Thousand only (Rs.17, 858,690,000) for the expenditure during the financial year 2015 commencing from January 1st, 2015 and ending on December 31st 2015 shall be met.

Appropriation for
financial year 2015

(a) from the proceeds of grants authorized by the Central Government,

and

(b) Out of Provincial Fund or any other funds or monies, at the disposal of the Provincial Council of the Northern Province may be expended as specified in the First Schedule to this statute.

(II) The Expenditure incurred by the Provincial Council of the Northern Province during the financial year 2015 on each activity specified in Column 1 of the Second Schedule to this statute shall be paid out of the receipts of the Provincial Council of the Northern Province, for such activity during that financial year, however such expenditure shall not exceed the limits specified in the corresponding entry in that Schedule.

3. The debit balance, outstanding at the end of the Financial Year 2015 of any activity specified in the Second Schedule to this statute shall not exceed the maximum limits specified in the



corresponding entry of that activity and the end of that financial year shall not exceed the maximum limits specified in the corresponding entry.

Power to transfer unexpended monies allocated to recurrent expenditure to another allocation within the same programme under the same head of expenditure

4. (I) any monies which by virtue of the provisions of the First Schedule to this Statute have been allocated to recurrent expenditure under any programme appearing under any Head specified in that Schedule and not have been expended or likely to be not expended may be transferred to the capital expenditure, within that programme or to the allocation of recurrent expenditure or capital expenditure under any programme within that Head, by order of the Chief Secretary or any officer authorized by him.

Power of the Provincial Council to transfer capital expenditure to other heads.

- (II) Monies allocated to capital expenditure under any Head specified in the First Schedule to this Statute shall be transferred to any other Head subject to approval granted by the Provincial Council of the Northern Province.

5. Where the Chief Minister is satisfied :

Power of Chief Minister to limit previously authorized expenditure

- (I) that receipts from taxes and other sources will be less than the amounts anticipated to meet authorized expenditure,

or

- (II) that amount originally appropriated for a particular purpose or purposes are no longer required, he may authorize the Chief Secretary of the Northern Province to withdraw in whole or in part any amount previously released for expenditure under the authority of a warrant issued by him from the Provincial Fund or, from any other fund or monies, of or at the disposal of The Provincial Council of the Northern Province.

Power of Chief Minister to vary the maximum and minimum limits specified in the second schedule to this statute

6. The Chief Minister may on or before March 31st, 2016 by order, vary or alter

- (I) any of the maximum limits specified in the Second Schedule to this Statute.

- (II) the minimum limits specified the Second Schedule to this Statute

Power of Provincial Council to amend the second schedule

7. Provincial Council of the Northern Province may by resolution, amend the Second Schedule to this Statute by adding an activity to the appropriate column,

- (I) All or any of the maximum limits and

- (II) The minimum limits relating to such activity

8. Under the Office of the Deputy Chief Secretary - Finance Project No: 04 of Financial Management Programme (421-08-04) may be transferred to any Programme on any Head of First Schedule by the Chief Secretary Consequently, such transfers have to be submitted to the Provincial Council as supplementary estimates for approval.

Tamil text to prevail in event of inconsistency

9. If there is any discrepancy between Tamil, Sinhala and English version the Tamil version will prevail.

C. V. KANDIYA SIVAGNANAM,
Chairman,
Northern Provincial Council.

B. JEYAHARAN,
Asst. Secretary,
Assembly Secretariat,
Northern Province.